

		party's argument for him]; <i>Cahill v. San Diego Gas & Electric Co.</i> (2011) 194 Cal.App.4th 939, 956 [same]; <i>People v. Lee</i> (2008) 161 Cal.App.4th 124, 130 ["It is not the court's function to marshal evidence for the parties or to make tactical judgments about how the parties should present their arguments."].) Defendant shall give notice.
4	Davis vs. Snell & Wilmer, LLP 2025-01522338	Demurrer to Complaint <i>Vacated. See minute order dated 7/6/26 (ROA 43).</i>
5	Diane Gibbs vs. Smith 2025-01532452	Motion for Judgment on the Pleadings Defendants Greater Pacific Roofing ("GPR") and Kevin Crowley's motion for judgment on the pleadings is DENIED as to the second cause of action for negligence as alleged against GPR, and GRANTED in all other respects. Plaintiffs Randy Morton and Diane Gibbs are granted 10 days leave to file a first amended complaint. <u>Entire complaint as alleged against Crowley.</u> As alleged against Crowley, the complaint fails to allege any facts against him in his individual capacity that give rise to any individual liability. The only allegations involving Crowley involve his statements on behalf of GPR as its CEO. (See Compl. at att. A.) <u>First cause of action for "motor vehicle."</u> The complaint fails to state facts sufficient to constitute a cause of action for "motor vehicle" negligence/liability. The complaint does not allege any facts suggesting the defendants engaged in any conduct that might give rise to such liability. <u>Second cause of action for general negligence.</u> The complaint adequately alleges a claim for negligence against GPR. (See <i>Kesner v. Superior Court</i> (2016) 1 Cal.5th 1132, 1142 [elements]; Civ. Code, § 1714, subd. (a) [duty]; <i>J'Aire Corp. v. Gregory</i> (1979) 24 Cal.3d 799, 806 [under section 1714, damages are recoverable where they result from an injury to one's person or property caused by another's negligence]; <i>Esparza v. Kaweah Delta Dist. Hospital</i> (2016) 3 Cal.App.5th 547, 555 [the "use of a Judicial Council form complaint is not a determinative factor in deciding whether or not to sustain a demurrer"; instead, the "court must examine the particular allegations ... and determine whether

		those allegations satisfy the pleading requirements established by California law”]; see also Compl. at att. A.) <u>Third cause of action for “other.”</u> The complaint fails to state facts sufficient to constitute the third cause of action for “other.” With respect to this claim, the complaint alleges, verbatim: “Defendants all agreed to turn the claim into their insurance or clients insurance and the damage would be taken care of by the insurance end or clients, and or themselves depending on which defendant you are talking too and it has not been .. [Sic.]” (Compl. ¶ 10f.) This fails to identify a theory of liability or state facts that give rise to a cognizable claim. Moving party shall give notice.
6	Farago vs. Hoag Memorial Hospital 2026-01540129	Motion for Preference Plaintiff Shirley Farago’s motion for trial preference is DENIED WITHOUT PREJUDICE. There is currently no evidence that plaintiff’s “health ... is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.” (Code Civ. Proc., § 36, subd. (a)(2); Farago Decl., ¶ 8 [stating only that plaintiff’s health is “uncertain”].) <i>Case Management Conference set for December 18, 2026 at 8:30 a.m. in Department C44.</i> Defendant Thomas Velling, M.D. shall give notice.
7	Guerrero vs. Ford Motor Company 2025-01518104	Demurrer to Amended Complaint As a preliminary matter, Code of Civil Procedure section 430.41 provides that before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the opposing party. Counsel for Ford failed to adequately meet and confer with opposing counsel prior to filing this demurrer and motion to strike. (Code Civ. Proc. §§ 430.41(a); 435.5(a).) Sending an email is insufficient. Counsel is advised to comply with the Code prior to filing any future motions. Failure to do so could result in a denial of the motions. In the interest of judicial economy, the Court exercises its discretion to hear the demurrer and motion to strike since they have been opposed by Plaintiff on the merits.